

online crime. However, issues with jurisdiction may just limit the reach and effectiveness of both. The Bangalore Cyber Crime Police Station, for instance, has “the whole state of Karnataka” as its jurisdiction for “offences committed under the Information Technology Act of 2000”. Now, with that itself being flawed, the rest of the setup, too, becomes questionable.

Anatomy Of A Cyber Crime?

Of all the cyber crimes committed, hacking and virus-writing are the most common. Businesses in particular are most likely to be victims of these, as compared to any other Internet-related offences.

Establishing a definition of a cyber crime itself can be a task. The Cambridge dictionary defines cyber crimes as crimes committed with the use of computers or relating to computers, especially through the Internet. Universally, cyber crime is understood as an unlawful act

wherein a computer is either a tool or a target or both.

According to noted lawyer Paavan Duggal, “The three broad categories of cyber crimes include cyber crimes against persons, property, and nations. Some cyber crimes have been covered under the Indian Cyber Law, namely the Information Technology Act, 2000. These are covered in a detailed chapter—Chapter XI of the IT Act, 2000.”

In the IT Act 2000, though, there are provisions to register a complaint if you have been a victim of a cyber crime. To be able to do that, you need to furnish some data. Here’s a list:

- ▣ Server logs
- ▣ Copy(ies) of defaced Web page(s) in soft copy form as well as hard copy format, if your Web site has been defaced
- ▣ If data has been compromised on your server, computer, or any other network equipment, soft copy(ies) of original data

“Indian cyberlaw is wanting and is defective”

Which is the best-equipped agency to tackle cyber crime in the world, and which is the best in India?

The best equipped agency to tackle cyber crime in the world is the Federal Bureau of Investigation. It has a distinct division on cyber crime. As far as the best equipped agency in India is concerned, the honours will have to be shared by the Central Bureau of Investigation and some State cyber crime cells, such as the Mumbai Cyber Crime Cell.

Do you think Indian agencies are equipped—in terms of knowledge and infrastructure—to tackle cyber crime?

I think that Indian agencies are well equipped with knowledge, in some pockets, to tackle cyber crime. However, we need to update this pool of knowledge by constant strain and orientation. We also need to ensure that we develop a detailed infrastructure for tackling cyber crime in the country. Today’s cyber crime regulation is often seen as a peripheral activity to main policing activities. Consequently, we find that not much investment has gone into developing the infrastructure for tackling cyber crimes. We need to provide for distinct cyber crime police stations in cities.

Which is the most widespread cyber crime in India?

The most widespread cyber crime in India is, of course, publishing and transmission of obscene electronic information. This is a cyber crime punishable under Section 67 of the Information Technology Act, 2000. The second-most prominent cyber crime in India is hacking. This offence is punishable under Section 66 of the Information Technology Act, 2000.

What are the various laws, if any, that explicitly protect the aggrieved party in a cyber crime?

In India, the only relevant law that protects an aggrieved party against cyber crime is the Indian Information Technology Act, 2000. This law has a detailed chapter, Chapter XI, entitled ‘Offences’, which details various kinds of offences under Indian cyber law. The major categories of offences covered under the said law include damage to computer source code, hacking,



Paavan Duggal
The noted cyber crime lawyer suggests some radical changes to the IT Act, 2000

publishing obscene electronic information, breach of confidentiality and privacy, breach of protected systems and publishing Digital Signature Certificates false in certain particulars, or for fraudulent purposes. These offences are punishable with imprisonment ranging from three years to 10 years, and with a fine ranging from Rs 1 lakh to Rs 2 lakh.

In addition, the IT Act of 2000 has also amended the Indian Penal Code of 1860. However, the only material amendment that has been made is that the word “document” has been substituted with the phrase “document or electronic record”. In addition, there is a new offence—creating a false electronic record—defined under the Indian Penal Code.

What amendments are needed to current cyber laws to help prevent crimes and prevent perpetrators escaping through loopholes?

If one looks at the preamble of the IT Act of 2000, one realises that to regulate cyber crime is not at all one of the stated objects of Indian cyber law. It right to say that Indian cyber law only has three objectives: firstly, to provide legal recognition to transactions carried out by electronic means of communication, commonly referred to as e-commerce, involving the use of alternatives to paper-based methods of communication and storage of information; secondly, to facilitate electronic filing of documents with government agencies; and thirdly, to amend four different laws of the country—namely, the Indian Penal Code, the Indian Evidence Act, the Bankers’ Books Evidence Act and the Reserve Bank of India Act.

Indian cyber law is wanting and defective inasmuch as it does not cover all the existing and emerging cyber crimes. A large number of cyber crimes that are today not covered under Indian cyber law include cyber stalking, cyber harassment, cyber nuisance, cyber defamation and so on. Even cyber terrorism is an offence not totally covered under the IT Act of 2000.

Practical experience after the coming into effect of the Indian cyber law has shown that registration of a cyber crime case requires a lot of time, effort and energy on behalf of the